

HOUSE No. 4276

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 23, 2025.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 399) of Steven S. Howitt and Justin Thurber (by vote of the town) relative to authorizing the town of Swansea to grant additional alcoholic beverage licenses, reports recommending that the accompanying bill (House, No. 4276) ought to pass [Local Approval Received].

For the committee,

TACKEY CHAN.

HOUSE No. 4276

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act re-authorizing the town of Swansea to issue additional licenses for the sale of all alcoholic beverages to be drunk on the premises.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the
2 licensing authority of the town of Swansea may grant up to 6 additional licenses for the sale of
3 all alcoholic beverages to be drunk on the premises pursuant to section 12 of said chapter 138 to
4 establishments located within the “Swansea Mall Redevelopment Area” as described in
5 subsection (b), upon approval of and under conditions set by the licensing authority. Licenses
6 granted pursuant to this act shall be clearly marked “Swansea Mall Redevelopment Area” on
7 their face and shall be subject to all of said chapter 138 except said section 17.

8 (b) The licensing authority of the town of Swansea shall restrict the licenses granted
9 pursuant to this section to establishments within the Swansea Mall Redevelopment Area, which
10 shall comprise the following portions of the Business B District as said District is shown on the
11 July 29, 2029 Zoning Map of the town of Swansea, and a copy of which Zoning Map is on file in
12 the office of the Swansea town clerk: (1) area located on the northerly and southerly parcels
13 along route 6 from the westerly boundary of Gardner Neck road to the westerly boundary of

Milton Reiser road; and (2) the area located from route 6 and route 118 in a northerly direction 3,900 feet +/- to the northerly most point of the Swansea Mall.

(c) A license granted pursuant to this section shall only be exercised in the dining room of a common victualler and in such other public rooms or areas as may be deemed reasonable and appropriate by the licensing authority, in its sole discretion, as certified in writing.

(d) The licensing authority shall not approve the transfer of a license granted pursuant to this section to a location outside of the town's Swansea Mall Redevelopment Area, but it may grant a license to a new applicant within the Swansea Mall Redevelopment Area if the applicant files with the licensing authority a letter from the department of revenue and a letter from the department of unemployment assistance indicating that the license is in good standing with those departments and that all applicable taxes, fees and contributions have been paid.

(e) A license granted pursuant to this section shall not be sold or transferred by the licensee. If a licensee terminates or fails to renew a license granted pursuant to this section or if any such license is cancelled, revoked or no longer in use, it shall be returned physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the licensing authority and the licensing authority may then grant the license to a new applicant within the town's Swansea Mall Redevelopment Area under the same conditions as specified in this section.

(f) All licenses granted pursuant to this act shall be issued not later than 3 years after the effective date of this act; provided, however, that a license originally granted within that time period may be granted to a new applicant pursuant to subsections (d) or (e) thereafter.

SECTION 2. Chapter 151 of the acts of 2019 is hereby repealed.

SECTION 3. This act shall take effect upon its passage.